

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 23/06/2022, a document was submitted to this Agency by A.A.A. (hereinafter, the claimant), through which a complaint is filed against UNIVERSIDAD COMPLUTENSE DE MADRID with NIF Q2818014I (hereinafter, UNIVERSIDAD COMPLUTENSE), for a possible breach of the provisions of personal data protection regulations.

The reasons for the complaint are as follows:

The claimant states that, as a result of a judicial proceeding before the Commercial Court No. 2 of A Coruña, they became aware that the entity that is the counterparty in that process, SIGNE, S.A., has apparently illegitimately accessed a request for access to public information under the Law 19/2013, of December 9, on Transparency, Access to Public Information, and Good Governance. This request would have been made by the claimant on 20/12/2018 to the UNIVERSIDAD COMPLUTENSE and, according to the claimant, was rejected as evidence by the presiding Judge of the proceeding for not proving that SIGNE, S.A. obtained it in accordance with the procedures established by the applicable administrative regulations.

In order to obtain more information, the claimant requested access to their personal data from the UNIVERSIDAD COMPLUTENSE on 27/12/2021, specifically asking about data transmissions to third parties. On 28/12/2021, they received a response from the UNIVERSIDAD COMPLUTENSE stating that there were no records of their data, and subsequently on 19/01/2022, the UNIVERSIDAD COMPLUTENSE stated that it had received the request for access to the aforementioned public information, which had been filed without being opened and, according to the respondent, had never been communicated to third parties.

Attached, among others, are the following documents:

- Transcript of parts of the video of the preliminary hearing held on 17/12/2021, in which the legal representative of SIGNE, S.A. intervenes to present as evidence the requests for access to public information made by the claimant.
- Copy of the request for access to public information, dated 20/12/2018, submitted by the claimant to the UNIVERSIDAD COMPLUTENSE, which is provided as evidence by SIGNE, S.A.
- Copy of the Resolution issued by the Council of Transparency and Good Governance, dated 16/04/2019.
- Copy of the emails exchanged between the claimant and the UNIVERSIDAD COMPLUTENSE after exercising the right of access provided for in the GDPR.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 08/03/2022, this complaint was forwarded to the UNIVERSIDAD COMPLUTENSE for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 08/03/2022 as evidenced by the acknowledgment of receipt in the file.

On 15/03/2022, a response was received in this Agency indicating the following:

"[...]"

1.- On December 27, 2021, Mr. A.A.A. submitted a standard access request form electronically signed to the UCM. (...) the interested party specifies that in 2018 they made a request for access to public information under the Law 19/2013, providing a screenshot of the submission in the Registry and new data regarding the aforementioned request. This new information allowed us to ascertain that on December 20, 2018, at 12:58:36, the interested party had submitted a general request in the Electronic Registry (...).

3.- (...). Although the request from 2018 was made under the Transparency Law, given the content of the request and the management that was then carried out at this University –under another

Government Team that ended its mandate in May 2019–, it is noted that the request was sent directly to the Procurement Service. From the Office of the Data Protection Delegate of the UCM, the Procurement Service has been requested to carry out the necessary inquiries and respond regarding the alleged information leak. To this end, the Procurement Service of the UCM has searched and searched for any documentation on this matter, finding absolutely nothing in that Service regarding it. (...) once received in the Electronic Registry of the UCM the request from Mr. A.A.A. in December 2018, the request was directed directly from the Registry to

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Contracting Service, without the registration having been opened in said Service. Therefore, the access request made under the provisions of Law 19/2013 was archived without being opened. There is no record of any other referral of the document to any other Service or administrative Unit, and given that this occurred almost four years ago, it is impossible to verify any leak from within the UCM.

4.- It should be noted that the access request currently made by Mr. A.A.A., through which he seeks to know who accessed that document in 2018, has been presented by the interested party to the UCM in such a “mysterious” and ambiguous manner—only communicating that an external Organization was aware of an instance he submitted to the Registry in 2018—that it has not allowed for further investigations. He has also not provided evidence that the information was indeed leaked from the UCM. He did not even inform us that it was a Court that had that information. And it does not seem that the opposing party in the trial, the company SIGNE, S.A., has indicated the UCM as the source of the allegedly leaked document, but of which— we insist—the claimant has not presented material evidence.

In view of the investigations carried out as a result of the access request submitted on December 27, 2021, on January 19, 2022, at 13:03, a response was given to the interested party (...)

Along with the document, the following documentation is provided:

- Copy of the form submitted by the claimant on December 20, 2018, to the COMPLUTENSE UNIVERSITY for access to certain public information.

- Copy of the document “Exercise of the right of access” submitted by the claimant on December 21, 2021; as well as the response from the COMPLUTENSE UNIVERSITY, dated January 19, 2022.

THIRD: On May 26, 2022, a Resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint.

The resolution was notified to the claimant in accordance with the provisions of the LPACAP, on May 26, 2022, as evidenced in the file.

FOURTH: On June 23, 2022, the claimant filed an optional appeal for reconsideration against the Resolution issued by the Director of the Spanish Agency for Data Protection on May 26, 2022. In the document, he states, in summary, his disagreement with the contested resolution and provides new documentation and new facts, arguing that the sending of his request without anonymizing SIGNE, S.A. would not be justified in any case, and that this sending has been evidenced by the statements and documentation provided by SIGNE, S.A., in the file initiated against this entity based on the same initial complaint previously mentioned. He points out that the fact that the COMPLUTENSE UNIVERSITY cannot locate the sending is proof that such communication was irregular. He adds that this would contradict the response to the exercise of the right of access exercised by the claimant, having therefore received an incomplete and incorrect response to exercise the right of access to his personal data, as the responding party would not have acknowledged the communication of the cited data.

On December 13, 2022, the Director of the Spanish Agency for Data Protection agreed to uphold the appeal filed. The resolution issued is based on the fact that the COMPLUTENSE UNIVERSITY “has not presented justification regarding the reason why the communication of the personal data of the person submitting a request for access to public information is necessary for the provision of the service contracted by the responding party, so it seems that it would be a communication of data to

third parties regarding which the appealing party has not been informed in response to the right of access to their personal data.”

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Principles relating to processing

Letter f) of Article 5.1 of the GDPR states:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures (‘integrity and confidentiality’).”

III

Right of access

Article 15 “Right of access of the data subject” of the GDPR establishes:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed and, where that is the case, access to the personal data and the following information:

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- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be communicated, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge for any additional copies requested by the data subject a reasonable fee based on

administrative costs. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

For its part, Article 13 “Right of Access” of the LOPDGDD states that:

“1. The right of access of the data subject shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679. When the controller processes a large amount of data concerning the data subject and the data subject exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the data subject specify the data or processing activities to which the request refers before providing the information.

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2. The right of access shall be deemed granted if the controller provides the data subject with a remote, direct, and secure access system to the personal data that ensures, on a permanent basis, access to the entirety. For these purposes, the communication by the controller to the data subject of how they can access this system shall suffice to consider the request for the exercise of the right as addressed. However, the data subject may request from the controller the information referred to in the aspects provided for in Article 15.1 of Regulation (EU) 2016/679 that is not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access on more than one occasion within a period of six months may be considered repetitive, unless there is legitimate reason for it.

4. When the data subject chooses a means other than that offered which involves a disproportionate cost, the request shall be considered excessive, and the data subject shall bear the excess costs that their choice entails. In this case, the controller shall only be required to satisfy the right of access without undue delay.”

IV

Conclusion

Regarding the issue of obtaining by the entity SIGNE, S.A. a copy of the request for access to public information submitted by the complaining party to the UNIVERSIDAD COMPLUTENSE on 20/12/2018, the documentation in the administrative file records the existence of a service contract signed by both parties on 20/02/2017, under which SIGNE, S.A. undertakes to provide a “Service for the personalization of official university and inter-university degrees, Erasmus Mundus degree and labels, European supplement to the degree, official degrees in electronic format, European supplement to the degree in electronic format, proprietary degrees in electronic format, continuous training, and diploma of advanced studies issued by the Universidad Complutense de Madrid”; until 31/12/2018.

While it is true that the request was submitted before the contract was terminated, this does not imply that the UNIVERSIDAD COMPLUTENSE sent the request without anonymizing SIGNE, S.A. during its validity; there being no rational indications to understand that, in fact, there has been a communication of personal data during the contractual relationship.

Furthermore, the emails exchanged between the employees of the UNIVERSIDAD COMPLUTENSE and SIGNE, S.A. in October 2019 do not prove the alleged communication of data; since there is no indication in their content of any copy of the request from the complaining party.

There are also no indications that allow setting the starting date for the calculation of the limitation period at a later date. Therefore, there is no evidence or probative elements that allow determining the

moment and manner in which the reported facts occurred.

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Given the impossibility of determining the specific day on which the infringement may have occurred, it must be taken into account that the request to which SIGNE, S.A. would have had access was made by the claiming party on 20/12/2018 and that the service contract ended on 31/12/2018, with more than 3 years having passed since those dates, which leads to the declaration of the prescription of the infringement by way of presumption, as there is no evidence to the contrary.

Regarding the right of access exercised by the claiming party on 27/12/2021, it is noted that on 10/01/2022, the UNIVERSIDAD COMPLUTENSE responded to the claiming party from the email address ofi.dpd@ucm.es and requested that they specify the data or processing activities they wish to access concerning their personal data, in addition to stating that there is no record of the aforementioned request. It was on 19/01/2022 when the UNIVERSIDAD COMPLUTENSE, in order to address the personal data access request submitted by the claiming party, provided the claiming party with a copy of the Record of Processing Activities corresponding to the “Electronic Registration” processing activity; however, it did not provide all the information requested by the claiming party, only addressing generic issues regarding personal data. Thus, the actions of the UNIVERSIDAD COMPLUTENSE could constitute an infringement classified under Article 83.5.b) of the GDPR, which, for the purposes of prescription, Article 74 c) of the LOPDGDD qualifies as minor.

For the reasons stated, the infringement of Article 15 of the GDPR is prescribed, given that one year has passed since the commission of the aforementioned facts.

Consequently, as it has not been possible to attribute responsibility for the communication of the claiming party's personal data to the UNIVERSIDAD COMPLUTENSE and, furthermore, the infringement of Article 15 of the GDPR has prescribed, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE these proceedings.

SECOND: TO NOTIFY this resolution to the UNIVERSIDAD COMPLUTENSE DE MADRID and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 940-301023

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